

TED^{C102} 3125

THIRD SEMESTER DIPLOMA EXAMINATION IN COMMERCIAL
PRACTICE

MODEL QUESTION ✓

MERCANTILE LAW

(Maximum Marks: 100)

Time: 3hrs

PART -A

I. Answer all questions in one or two sentences each question carries two marks.

1. Define consideration.
2. Distinguish between mistake and misrepresentation
3. State the meaning of unpaid seller.
4. State the status of an agreement with an alien enemy.
5. Define the term manufacturing process.

(5x2=10)

PART-B

II. Answer any five of the following questions. Each question carries six marks)

1. Distinguish between agreement and contract.
2. State the essential elements of fraud.
3. Distinguish between actual breach and anticipatory breach of contract
4. State the rules relating to minors agreement.
5. Distinguish between sale and hypothecation
6. Write short note on document of title of goods.
7. State the provisions in the factories act regarding Welfare measures.

(5x6=30)

PART-C

(Answer one full question from each module. Each question carries 15 marks)

Module 1

III.

1. List the essential elements of a valid acceptance.(10)
2. State the meaning of capacity of parties competent to enter in to contract. (5)

OR

IV.

1. State the legal rules regarding consideration (10)
2. List different types of persons who are not competent to contract. (5)

Module-2

V.

1. List out the items considered as against the public policy. (7)
2. Explain; a) coercion b) undue influence (8)

OR

VI.

1. State the remedies available for breach of contract. (7)
2. Write short note on the following:
 - a) misrepresentation
 - b) mistake(8)

Module-3

VII

1. Distinguish between conditions and warranties (8)
2. List the rights available to an unpaid seller. (7)

OR

VII

1. Distinguish between sale and agreement to sell (8)
2. State the differences between sale and hire purchase (7)

Module -4

IX.

1. Write notes on ~~Manufacturing process~~ ^{Worker} (5)
2. Explain the provisions of the factories Act for the welfare of the workers. (10)

OR

X

1. Explain the objects of the Factories Act 1948 (5)
2. Explain the provisions ensuring health of the workers in the factories Act (10)